

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X SUMMONS

FAUSTO JIMENEZ,

Plaintiff,

Plaintiff designates Kings
County as the place of trial.

- against -

THE CITY OF NEW YORK, POLICE OFFICER JOHN
REID, POLICE OFFICER JOHN DOE,

Defendants.

The basis of venue is:
The county in which the action
arose per CPLR 504(3)-----X The cause of action arose in
Kings County and is against
the City of New York

TO THE ABOVE NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorney(s) within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner.

IN CASE OF YOUR FAILURE TO APPEAR OR ANSWER, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, NY
October 28, 2019

DEFENDANTS' ADDRESS:

THE CITY OF NEW YORK
Division of Law, Rm 1225 South
1 Centre Street, New York, NY 10007POLICE OFFICER JOHN REID
90th PRECINCT
211 Union Ave, Brooklyn, NY 11211

PLAINTIFF'S ATTORNEY:

Masai I. Lord, Esq.
Attorney for Plaintiff
233 Broadway, Suite 2220
New York, NY 10279
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**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS**

-----X
FAUSTO JIMENEZ,

Plaintiff,

INDEX NO:

- against -

VERIFIED COMPLAINT

THE CITY OF NEW YORK, POLICE OFFICER JOHN
REID, POLICE OFFICER JOHN DOE

Defendants.

-----X

Plaintiff, FAUSTO JIMENEZ, ("Mr. Jimenez or Plaintiff") by his attorneys. LORD &
SCHEWEL PLLC, alleges upon knowledge as to himself and his own actions, and upon
information and belief as to all other matters, as follows:

PRELIMINARY STATEMENT

1. Plaintiff brings this action for compensatory damages and punitive damages
pursuant to the common law of the State of New York, for violations of his rights under the New
York Constitution, and pursuant to 42 U.S.C. § 1983 and 42 U.S.C. § 1988 for violations of his
rights under the Constitution of the United States of America.

JURISDICTION AND VENUE

2. Jurisdiction lies in the Supreme Court of New York, County of Kings, as all
Defendants resided in the State of New York, and the amount in controversy exceeds the
jurisdictional amounts of all lower courts.

3. Plaintiff complied with the requirements of New York General Municipal Law
Section 50-H by serving a notice of claim on the City of New York dated November 16, 2018.

4. Fausto Jimenez ("Jimenez") was deposed by the City of New York pursuant to
50-H on September 26, 2019.

5. The City of New York has not settled or adjusted this claim.

6. That all conditions and requirements precedent to the commencement of this action have been complied with.

7. Venue is proper under CPLR § 504 in the County of Kings as it is the county where this cause of action arose.

JURY DEMAND

8. Plaintiff respectfully demands a trial by jury of all issues in this matter.

PRELIMINARY STATEMENT

9. Plaintiff is a resident of the of the State of New York.

10. Defendant City of New York is a municipal corporation organized under the laws of the State of New York. It operates the New York City Police Department (“NYPD”), a department or agency of defendant City of New York responsible for the appointment, training, supervision, promotion and discipline of police officers and supervisory police officers, including the individually named defendants herein.

11. All Individual Defendant NYPD Officers, listed below, are entitled to indemnification by the City of New York under New York law for any liability arising from conduct described herein.

12. All Individual Defendant NYPD Officers, listed below, are entitled to indemnification by the City of New York pursuant to contract for any liability arising from his conduct described herein.

13. Pursuant to CPLR Section 1602(7), defendants are jointly and severally liable for all of plaintiff's damages, including but not limited to plaintiff's non-economic loss, irrespective of the provisions of CPLR Section 1601, by reason of the fact that defendants acted with reckless disregard of the safety of others.

14. Pursuant to CPLR Section 1602(2)(iv), defendants are jointly and severally liable for all of plaintiff's damages, including but not limited to plaintiff's non-economic loss, irrespective of the provisions of CPLR Section 1601, by reason of the fact that defendants owed the plaintiff a non-delegable duty of care.

15. Pursuant to CPLR Section 1602(2)(iv), defendants are jointly and severally liable for all of plaintiff's damages, including but not limited to plaintiff's non-economic loss, irrespective of the provisions of CPLR Section 1601, by reason of the fact that defendants are vicariously liable for the negligent acts and omissions of others who caused or contributed to the plaintiff's damages.

16. Defendant Officer John Reid ("Reid") was at all times relevant to this Complaint a duly appointed and acting employee of the City of New York and the NYPD, acting under color of law and in his individual capacity within the scope of employment pursuant to the statutes, ordinances, regulations, policies, customs, and usage of the City of New York and the NYPD. He is sued in his individual capacity.

17. Defendant Officer John Doe ("J. Doe") was at all times relevant to this Complaint a duly appointed and acting employee of the City of New York and the NYPD, acting under color of law and in his individual capacity within the scope of employment pursuant to the statutes, ordinances, regulations, policies, customs, and usage of the City of New York and the NYPD. He is sued in his individual capacity.

18. Plaintiff was incarcerated for approximately 24 hours before being arraigned and was released on his own recognizance.

19. On July 11, 2018, Mr. Jimenez's case was dismissed in the interest of justice by the Kings County District Attorney's Office.

STATEMENT OF FACTS COMMON TO ALL CLAIMS

20. On March 25, 2018 Mr. Jimenez was driving on the highway to pick up equipment that was needed for work. Mr. Jimenez owns a construction company.

21. He was pulled over by the Police near Wythe Avenue and Williamsburg Street. Prior to being pulled over, Mr. Jimenez had not violated any traffic laws.

22. Mr. Jimenez gave them a valid license and registration and insurance.

23. The officer asked Mr. Jimenez to exit the vehicle. Without a basis to do so, he told Mr. Jimenez that his license plate and registration was forged.

24. Mr. Jimenez informed that his license plate was valid and that he had recently purchased the vehicle. He presented Defendants with a valid insurance card that showed the vehicle had been registered in New York State on March 19, 2018.

25. Moreover, Mr. Jimenez's temporary license plate was perfectly valid in the State of New Jersey. The Officers had no reasonable basis to think otherwise.

26. Mr. Jimenez was placed under arrest despite his valid license plate and registration and charged with both of them being forged, with no legal basis, justification, or corroboration from any database.

27. Mr. Jimenez was unlawfully arrested and charged with VTL § 401(1)(A), unregistered motor vehicle, and two counts of PL § 170.20, criminal possession of a forged instrument in the third degree.

28. Mr. Jimenez was arraigned on March 25, 2018 and released on his recognizance.

29. None of the aforementioned acts were protected by legal privilege, nor were such acts legally justified. Said occurrence and the injuries and damages sustained by claimant were

due solely to the negligence, carelessness, recklessness and willful misconduct of the CITY OF NEW YORK, its agents, servants and/or employees.

30. These charges against Plaintiff was based entirely on the false allegations and fabrications by Defendants John Reid and John Doe.

31. Plaintiff was illegally was stopped, arrested and imprisoned by agents and/or employees of the City of New York, including, but not limited to, upon information and belief, agents employed by the New York City Police Department.

32. Plaintiff was then maliciously prosecuted by and at the direction of the said individuals.

33. None of the aforementioned acts are or were protected by legal privilege, nor were such acts legally justified.

34. Said occurrence and the injuries and damages sustained by claimants were due solely to the negligence, carelessness, recklessness and willful misconduct of the CITY OF NEW YORK, its agents, servants and/or employees.

35. As a result of the DEFENDANTS' conduct, Plaintiff has been caused to suffer, *inter alia*, severe anxiety, humiliation, and embarrassment, damage to personal reputation, apprehension, fear and distrust of the police, emotional and psychological trauma, loss of income, and violation of rights under the U.S. and New York Constitutions, and applicable statutory and case law.

**FIRST CLAIM:
FALSE ARREST UNDER USC § 1983**

29. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

30. That on March 25, 2018, and at all times hereinafter mentioned and upon information and belief, DEFENDANTS, without justification and without probable cause, imprisoned the Plaintiff.

31. That the DEFENDANTS' acting under the color of the law, intentionally confined the Plaintiff against his will and said confinement was not privileged.

32. As a result of the above constitutionally impermissible conduct, Plaintiff was caused to suffer psychological and emotional injuries, violation of their civil rights, emotional distress, anguish, anxiety, fear, humiliation, loss of freedom, and damage to their reputation and their standing within their community.

33. As a result of DEFENDANTS' impermissible conduct, Plaintiff demand judgment against DEFENDANTS in a sum of money to be determined at trial.

**SECOND CLAIM:
MALICIOUS PROSECUTION UNDER STATE AND FEDERAL LAW**

34. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

35. At the aforementioned times and locations, was detained and held under the imprisonment and control of the DEFENDANTS and other unidentified officers of the NYPD present on the scene without probable cause.

36. DEFENDANTS commenced the criminal action against Plaintiff in the absence of any probable cause that a crime had been committed.

37. DEFENDANTS commenced this criminal action out of malice.

38. The criminal action against Plaintiff has terminated in his favor.

39. That at all times hereinafter mentioned, said arrest, confinement and restraint of liberty was not otherwise privileged.

40. That Plaintiff was conscious of the confinement.

41. That as a direct, sole and proximate result of the false arrest, imprisonment, and malicious prosecution, Plaintiff was caused to and did sustain humiliation and embarrassment, emotional and mental distress, moral and mental degradation, indignity and disgrace, injury to personal reputation, inconvenience, and the disturbance and disruption of life.

42. The acts and conduct of the DEFENDANTS were the direct and proximate cause of injury and damage to the Plaintiff and violated his statutory and common law rights as guaranteed by the law of the Constitutions of the State of New York and of the United States.

43. As a result of the above constitutionally impermissible conduct, Plaintiff was caused to suffer psychological and emotional injuries, violation of their civil rights, emotional distress, anguish, anxiety, fear, humiliation, loss of freedom, and damage to their reputation and his standing within their community.

44. As a result of DEFENDANTS' impermissible conduct, Plaintiff demand judgment against DEFENDANTS in a sum of money to be determined at trial.

**THIRD CLAIM:
FAILURE TO INTERVENE UNDER 42 U.S.C. 1983**

45. Plaintiff repeats and realleges each and every allegation as if fully set forth herein.

46. Defendant John Doe had an opportunity prevent the false arrest of Mr. Jimenez, had a duty to intervene and prevent such conduct and failed to intervene.

47. As a direct and proximate result of this unlawful conduct, plaintiff sustained the damages previously alleged.

**FOURTH CLAIM:
VIOLATIONS OF DUE PROCESS OF LAW AND FABRICATION OF
EVIDENCE UNDER 42 U.S.C 1983**

48. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

49. That Defendants Reid and John Doe falsely informed the Kings County District Attorney's Office ("KCDA") that they, *inter alia*, made a legal traffic stop of Plaintiff, that the license plate, insurance and registration were forgeries.

50. That Defendant Reid falsely stated this information under penalty of perjury, and then forward this information to the KCDA.

51. This claim was to give the misleading and false impression that Defendant Reid lawfully arrested Plaintiff.

52. That the aforementioned statements by Defendant Reid consisted of fabricated and falsified information was utilized and relied upon by the KCDA.

53. The Individual Defendants acting individually and in concert and conspiracy, deliberately, and recklessly.

54. At all times Defendants were acting within their scope of their employment with The City of New York, at the aforesaid location.

55. That this information caused Plaintiffs to be denied his liberty and right to a fair prosecution in violation of fourth, fifth, sixth, and fourteenth amendments of the United States Constitution.

**FIFTH CLAIM:
NEGLIGENT AND INTENTIONAL INFLICTION OF EMOTIONAL DISTRESS**

56. Plaintiff repeats and realleges each and every allegation contained in the preceding paragraphs as if fully set forth herein, and he further alleges as follows.

57. DEFENDANT New York City are liable to Plaintiff because of its intentional, deliberately indifferent, careless, reckless, and/or negligent failure to adequately hire, train, supervise, retain and discipline its agents and/or employees employed by the New York City Police Department with regard to the duties described above.

58. The misconduct by Defendants Reid and John Doe described above and below, in particular evidences the failure to adequately hire, train, supervise, retain and discipline the Department's officers.

59. Consequently, DEFENDANT City of New York are liable to Plaintiff for damages.

**SIXTH CLAIM:
VIOLATION OF THE NEW YORK STATE CONSTITUTION**

60. Plaintiff repeats and realleges each allegation contained in the preceding paragraphs as if fully set forth herein.

61. By virtue of the aforementioned acts, the Individual Defendants are liable to Plaintiff for violating his right to due process under Article I § 6 of the New York State Constitution, and his right to be free of unreasonable and unlawful searches and seizures under Article I § 12 of the New York State Constitution.

62. Defendant City of New York is liable for these violations of the New York State Constitution under the principle of *respondeat superior*.

63. Consequently, the Individual Detectives and the City of New York are liable to Plaintiff for compensatory and punitive damages.

PRAYER FOR RELIEF

WHEREFORE, plaintiff respectfully requests judgment against defendants as follows:

- (a) Compensatory damages against all defendants, jointly and severally;
- (b) Punitive damages against the individual defendants, jointly and severally;
- (c) Reasonable attorneys' fees and costs; and
- (d) Such other and further relief as this Court deems just and proper.

Dated: October 28, 2019
 New York, New York

Yours, etc.

Lord & Schewel PLLC



Masai I. Lord
Attorneys for Plaintiff
FAUSTO JIMENEZ
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New York, NY 10279
718-701-1002

ATTORNEY'S VERIFICATION

MASAI I. LORD, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am an attorney at LORD & SCHEWEL PLLC, attorneys of record for plaintiff FAUSTO JIMENEZ I have read the annexed SUMMONS and COMPLAINT and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files.

This verification is made by me because Plaintiff is not presently in the county wherein I maintain my offices.

DATED: New York, New York
October 28, 2019



Masai I. Lord
Counsel for Plaintiff